

Andhra Pradesh Farmers Management of Irrigation Systems Rules

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[Andhra Pradesh Farmers Management of Irrigation Systems Rules](#)

[1.](#)

[Administrative Machinery for the conduct of Elections.](#)

[\(1\)](#)

The Election Authority shall be the Election Authority for the purpose of conduct of elections under the Andhra Pradesh Farmers' Management of Irrigation Systems Act, 1997 (Act 11 of 1997) The superintendence, direction, control and conduct of election of Members, Managing Committee and President of Water User's Associations' in the State, in ordinary vacancies and casual vacancies shall be by the District Election Authority for purpose of conduct of elections under the Act.

[\(2\)](#)

[\(a\)](#)

The District Election Authority shall be the District Election Authority. The functions of the Election Authority under these rules may also be performed, unless specifically otherwise provided, by the District Election Authority within his jurisdiction.

(b)

The Joint Collector of the District shall be the Additional District Election Authority. The Revenue Divisional Officer, or the Sub-Collector, as the case may be, in the District shall be the Deputy District Election Authority.

(c)

The Additional District Election Authority and the Deputy District Election Authority shall perform such of those functions as may be assigned to them by the District Election Authority. The District Election Authority may authorise in writing, the Additional District Election Authority or the Deputy District Election Authority to exercise in any local area in the District in regard to any Water Users' Association, the Distributory Committee or the Project Committee in that area any of the powers vested in him under these rules.

(3)

Subject to the general superintendence, direction and control of the Election Authority, the District Election Authority shall be responsible for the conduct, co-ordination and supervision of all works in connection with the conduct of elections of the Members, Managing Committee and President of Water Users' Association and the Distributory Committee and the Chairman and members of the Managing Committee of the Project Committee.

(4)

For every election to fill the seats of Member, Managing Committee and President of Water User's Association and the Distributory Committee, and for the office of the Chairman and member of the Managing Committee of the Project Committee, the District Election Authority shall designate or nominate by order an officer as an election officer, who shall as far as possible be a Gazetted Officer of the State Government or of a local authority not below the rank of a Mandal Revenue Officer. In case Gazetted Officers are not available, other suitable officers may be appointed.

(5)

The District Election Authority may appoint one or more persons as Assistant Election Officers to assist any Election Officer :

Provided that every such person shall be an officer of the State Government or of a local authority.

(6)

Every Assistant Election Officer shall, subject to the control of the Election Officer, be competent to perform all or any of the functions of the Election Officer :

Provided that no Assistant Election Officer shall perform any functions of the Election Officer which relate to the scrutiny of nominations unless the Election Officer is unavoidably prevented from performing the said functions.

(7)

It shall be the general duty of the Election Officer at any election to do all such acts and things as may be necessary for conducting the election in the manner provided under the Act and the Rules or orders made thereunder.

(8)

The District Election Authority shall, subject to such directions as may be issued by the Election Authority, provide as many polling stations as are necessary for the conduct of elections and shall publish in such manner as the Election Authority may direct a list showing the polling stations and the areas or groups of voters for which they have been provided respectively.

(9)

(a)

The District Election Authority or any other officer authorised by him shall appoint a Polling Officer for each Polling station and such other polling personnel as he thinks necessary but he shall not appoint any person who has been employed by or on behalf of or has been otherwise working for a candidate in or about the election :

Provided that if a polling clerk is absent, the Polling Officer may appoint any person who is present at the polling station other than a person who has been employed by or on behalf of or has been otherwise working for a candidate in or about the election to be the polling clerk and inform the Election Officer accordingly.

Provided further that the polling personnel appointed for the conduct of poll for Member, Managing Committee and President of Water Users' Association, any other officer authorised by him in this behalf under this rule may, without a separate appointment conduct the poll for any other elective office for which the election is conducted simultaneously.

(b)

A polling clerk shall, if so directed by the Polling Officer, perform all or any of the functions of a Polling Officer under these Rules.

(c)

If a Polling Officer owing to illness or due to unavoidable cause, absent himself, from the polling station his functions, shall be performed by such polling clerk as has been previously authorised by the Election Officer to perform such functions during any such absence.

(d)

It shall be the general duty of the Polling Officer at the polling station to keep and maintain public order there at, and to see that the poll is taken in a fair manner.

Part 1

Election of Member, Managing Committee and President of Water Users' Association

2.

Public notice of intended election.

(1)

An ordinary election shall be held for the purpose of constituting a Water Users' Association after the commencement of the Act and on the expiration of the term of the Water Users' Association or on vacation of such office either by death, resignation or recall.

(2)

For the said purpose the Election Authority shall, subject to such directions as may be issued by the Government in pursuance of and in consonance with the provisions of the Act in this behalf, by notification published in Form 1, in the Andhra Pradesh Gazette, call upon, on such date or dates as may be specified therein, to elect the Member, Managing Committee and President of the Water Users' Association, in accordance with the provisions of the Act, and the Rules and orders made thereunder.

(3)

The notification shall specify the last date for making nominations, the date for scrutiny of nominations, the last date for withdrawal of the candidature, the date or dates on which and the time during which the poll shall be taken and the date before which the election shall be completed.

(4)

On the issue of the notification the Election Officer shall give public notice of the intended elections for Water Users' Association, Form 2, in Telugu language which shall be published at prominent places and in such manner as the Election Officer may direct.

(5)

The dates appointed for the various stages of the election shall be subject to the following :

(a)

the last date for making nominations shall be not earlier than the fourth day and not later than the tenth day after the publications of the notification referred to in sub-rule (2) whether or not it is a public holiday;

(b)

the date for the scrutiny of nominations shall be the day immediately following the last date for making nominations whether or not it is a public holiday;

(c)

the last date and time for withdrawal of the candidature shall not be later than 3.00 p.m. for the third day succeeding the day appointed for scrutiny of the nominations, whether or not it is a public holiday;

(d)

The date or dates on which a poll shall, be taken, which or first of which shall be a date not earlier than the tenth day after the last date for withdrawal of the candidature.

(e)

The poll shall commence on the day fixed, at 7.00 a.m. and shall be closed by 1.00 p.m. Soon after the polling is over, counting shall commence and the results shall be declared on the same day.

3.

Special election program.

- Notwithstanding anything contained in these rules, where the election process is interrupted or the election programme has to be altered on account of the orders of any Court of Law or for other valid reasons to be recorded in writing, it shall be competent for the Election Authority either generally or in respect of specified Water Users' Association to alter the election programme as he deems fit, in the circumstances of the case without having regard to sub-rule (5) of Rule 2 and the election officer shall give effect to the same :

Provided that where the election programme is renotified under this rule commencing from the making of nominations, the nominations already made shall be disregarded and the deposits, if any, made under Rule 6 shall be refunded.

4.

Nomination of candidates.

(1)

Any person may be nominated as a candidate to fill the office of Member, Managing Committee and President of Water Users' Association, if he is qualified to be chosen to fill the seat under the provisions of the Act. Every nomination paper shall be in Form 3, for Water Users' Association. This shall be presented on or before the date appointed by the candidate or by his proposer in person in Form 4, between the hours specified duly signed by the candidates and by the proposer. The candidate shall sign the declaration on the nomination paper expressing his willingness to stand for the election.

(2)

(a)

A candidate for the office of Member of President of Water Users' Association and his proposer shall be persons whose names are registered in the Voters List for that Water Users' Association.

(b)

Each candidate shall be nominated on a separate nomination paper.

(c)

A candidate may be nominated by more than one proposer separately for the same elective office in a separate nomination form:

Provided that not more than four nominations shall be filed by or on behalf of a candidate.

5.

Presentation of nomination paper and requirements of valid nominations.

(1)

On receiving nomination paper, the Election Officer shall forthwith number the nomination paper serially in the order in which it is presented and give a receipt as provided in Form 3 for Water Users' Association and the election officer or such other authorised person shall satisfy himself that the name and number of the candidate and his proposer, as entered in the nomination paper, are the same as those entered in the electoral roll. Where necessary, he shall direct that the nomination form be amended so as to be in accordance with the electoral roll.

(2)

The Election Officer may while interpreting an entry in the Voters List overlook the clerical or printing errors only; but he shall record the interpretation adopted by him, together with the reasons therefor, while making the formal acceptance or rejection on scrutiny of a nomination.

6.

Deposits.

(1)

A candidate desirous to stand for election to the office of the Member, Managing Committee and President of Water Users' Association shall deposit or cause to be deposited a sum of two hundred rupees in any Government Treasury or Bank as may be specified at or before the time of presentation of his nomination paper. No candidate shall be deemed to be duly nominated, unless the deposit as aforesaid has been made : A candidate desirous to contest for the office of the President and also as Member of the Managing Committee of the Distributory Committee shall deposit or cause to be deposited a sum of Rs. 500/- (Rupees five hundred only), and Rs. 300/- (Rupees three hundred only). respectively in any Government Treasury or Bank as may be specified at or before the time of presentation of his nomination paper. No candidates shall be deemed to have been duly nominated unless the deposit as aforesaid has been made.

Provided that where a candidate has been nominated in more than one nomination paper, not more than one deposit shall be required to be made.

Explanation. - The delivery to the election officer of a receipt from Government Treasury or from one of the branches of the State Bank of India or State Bank of Hyderabad evidencing the payment by or on behalf of a candidate to the credit of Water Users' Association of the amount required to be deposited under this sub-rule shall be deemed to be a deposit of such amount within the meaning of this sub-rule, made by or on behalf of such candidate at the time of such delivery : Provided that where there is no Government Treasury, or a Bank transacting Government business, the security deposit under this sub-rule shall be deposited with the Election Officer and a receipt obtained therefor.

(2)

If no nomination paper is received within the time appointed in that behalf, in respect of any person by whom/or on whose behalf the deposit referred to in sub-rule (1) has been made or if the nomination of any such person is rejected, or if he withdraws his candidature in the manner and within the time-specified in sub-rule (I) of Rule 9 the deposit shall be returned immediately to the person by whom it was made, and if any candidate dies before commencement of the poll, any such deposit if made by him shall be returned to his legal representative, if not made by the candidate, shall be returned to the person by whom it was made.

(3)

If a candidate by whom or on whose behalf the deposit referred to in sub-rule (1) has been made, is not elected and the number of valid votes polled to him does not exceed one eighth of the total number of valid votes polled by all the candidates, the deposit shall be forfeited to the Government.

(4)

The deposit made in respect of a candidate shall, if, it is not forfeited under sub-rule (2) be returned to the candidate or to the person who has made the deposit on his behalf, as the case may be, within thirty days after publication of the result of election in accordance with Rule 43.

(5)

A deposit required to be returned to any person under the proviso to explanation or sub-rule (3) shall, if such person is dead, be returned to his legal representative.

(6)

Notwithstanding anything contained in this rule immediately after publication of the result of election, the Election Officer or the person authorised by the District Election Authority in this behalf , shall pass an order as to whether a deposit made under sub-rule (1) shall be refunded or forfeited. The Competent Authority concerned shall within thirty days from the date of publication of the result, return the deposit to the person who made the deposit or to his legal representative when such deposit is refundable. In the case of forfeiture of deposit under sub-rule (2), the election officer shall communicate an order to the person concerned who made the deposit by giving the reasons for such forfeiture.

(7)

The amounts received towards election deposit, challenge fee etc., credited to the Water Users' Association fund shall be remitted to Government Account by the Competent Authority concerned after deducting any refunds made to the concerned for any reason provided under these rules.

7.

Publication of nominations received.

- Immediately after expiration of the time specified for receipt of the nomination papers on the dates fixed for that purpose, the Election Officer or such other authorised person shall publish at his office in Telugu language a list in Form 5(1) of all the nominations received, with a notice that the nomination papers will be taken up by the Election Officer for scrutiny at the specified place, the date and the time.

8.

Scrutiny of nomination papers.

(1)

On the date appointed for scrutiny of the nominations, the candidates, the proposer of each candidate and one other person duly authorised in writing by each candidate, may attend at such time and place as may be specified under Rule 7. No other person shall be entitled to be present. The Election Officer may, however, admit such other persons as he thinks fit to assist him. The Election Officer shall give such persons all reasonable facilities to examine the nomination papers of all the candidates, which have been received as aforesaid.

(2)

The Election Officer shall then examine the nomination papers and shall decide on all objections which may be made at

the time of nomination and may either on such objection or on his own motion after summary enquiry as he thinks necessary, reject any nomination on any of the following grounds; namely:-

(i)
that the candidate is ineligible for election as a Member or President of Water Users' Association under Section 14 of the Act; or

(ii)
that the name of the candidate or of his proposer or both is or are not registered in the voters List; or

(iii)
that the candidate or his proposer has failed to comply with any of the provisions of Rule 4 or 6; or

(iv)
that the signature or the thumb impression of the candidate or the proposer in the nomination paper is not genuine:
Provided that the nomination of a candidate shall not be rejected merely on the ground of an incorrect description of his name or of the name of his proposer, or of any other particulars relating to the candidate or his proposer as entered in the electoral roll, if the identity of the candidate or proposer, as the case may be, is otherwise established beyond reasonable doubt.

(3)
The Election Officer shall endorse on each nomination paper, his decision, accepting or rejecting the same and, if the nomination paper is rejected, he shall record in writing brief statement of his reasons for such rejection. The scrutiny shall as far as practicable, be completed on the date appointed in this behalf under Rule 3 and no adjournment of the proceedings shall ordinarily be permissible except to provide an opportunity to a candidate to rebut any contention raised against his candidature.

(4)
For the purpose of this rule, a certified copy of an entry in the Voters List in force of a Water Users' Association shall be conclusive evidence of the fact that the person referred to in that entry is an elector for that Water Users' Association unless it is proved that he is subject to any disqualification mentioned in the Act.

(5)
Immediately after all the nomination papers have been scrutinized and the decision, accepting or rejecting the same have been recorded, the Election Officer shall prepare a list of validly nominated candidates, that is to say, candidates whose nominations have been found valid and affix it to the notice board of his office in Form 5(2).

9.
Withdrawal of candidature.

(1)
Any candidate may withdraw his candidature by notice in writing in Form 6 signed by him and delivered to the Election Officer either by such candidate in person or by his proposer or by his election agent at any time after the presentation of his nomination paper and not later than 3.00 p.m of the third day succeeding the day appointed for scrutiny of the nominations whether or not it is public holiday. The Election Officer shall give a receipt for the same as provided in Form 6, on being satisfied as to the genuineness of the notice of withdrawal and the identity of the person delivering it.

(2)
The Election Officer, on receiving a notice of withdrawal under sub-rule (1) shall, as soon as may be, cause a notice of the withdrawal to be published in Form 7.

(3)
A candidate, who has withdrawn his candidature under sub-rule (1) shall not be allowed to cancel the withdrawal or to be re-nominated as a candidate for the same election.

10.
Publication of list of contesting candidates.

(1)
Two days after scrutiny of the nominations, the Election Officer shall prepare in Telugu language a list in Form 8 of persons whose nominations have not been rejected and who have not withdrawn their candidature and publish it on the notice board of his office.

(2)
The list shall contain the names of the candidates in alphabetical order in Telugu and shall describe them as in their

nomination paper and if poll is found to be necessary it shall also specify the distinctive symbols allotted to them, under sub-rule (3).

(3)

If a poll is found to be necessary, the election officer shall assign to each candidate subject to such directions as may be issued by the Election Authority in that behalf, a distinctive symbol.

(4)

In every case where a symbol is assigned to a candidate under sub-rule (3) such candidate or his election agent shall forthwith be informed of the symbol so assigned and be supplied with a specimen thereof by the Election Officer.

11.

Declaration of result of uncontested candidate.

(1)

If the number of contesting candidates is more than one, poll shall be conducted.

(2)

If there is only one validly nominated candidate the Election Officer shall forthwith declare such candidate as duly elected in Form 9 and send the same to the Election Authority and the District Election Authority.

12.

Death of candidate before poll.

- If a contesting candidate dies and a report of his death is received before commencement of the poll, the Election Officer shall after being satisfied of the fact of the death of the candidate, countermand the poll and election proceedings shall be started afresh in all respects as if it is a new election:

Provided that no fresh nomination, shall be necessary in the case of a candidate who stood validly nominated at the time of countermanding of the poll.

13.

Appointment of agents.

(1)

(a)

A candidate at an election to the office of the President of a Water Users' Association, may appoint any one person other than himself to be his Election Agent. The notice of such appointment shall be given in Form 10 by forwarding the same in duplicate to the Election Officer who shall return one copy thereof to the Election Agent after affixing therein his seal and signature in token of his approval of the appointment.

(b)

An Election Agent may perform such functions in connection with the election as are authorised by or under these rules to be performed by an Election Agent.

(2)

(a)

The number of polling agents that may be appointed by a contesting candidate or his election agent, shall, in respect of each polling station, be one agent and a relief agent.

(b)

Every such appointment shall be made in Form 11 and shall be made over to polling agent for production at the polling station.

(c)

No polling agent shall be admitted into the polling station unless he has delivered to the Polling Officer the instrument of his appointment under sub-rule (2) after duly completing and signing before the Polling Officer the declaration contained thereon.

(d)

A polling agent may perform such functions in connection with the poll as are authorised by or under these rules, to be performed by a polling agent.

(3)

(a)

Each candidate may appoint such number of counting agents at the place or places fixed for counting as may be specified by the District Election Authority.

(b)

Every such appointment shall be made in Form 12 in duplicate, one copy of which shall be forwarded to the Election Officer while the other copy shall be made over to the counting agent for production before the Election Officer not later than one hour before the time fixed for counting.

(c)

A counting agent may perform such functions in connection with the counting of votes as are authorised by or under these Rules to be performed by a counting agent.

(4)

(a)

At every election where a poll is taken, each contesting candidate at such election and his election agent shall have a right to be present at any polling station.

(b)

A contesting candidate himself or his election agent may do any act or thing which any polling agent or the counting agent of such contesting candidate if appointed would have been authorised by or under these rules to do, or may assist any polling agent or counting agent or such contesting candidate in doing any such act or thing.

(5)

Where any act or thing is required or authorised by or under these rules to be done in the presence of the polling or counting agents, the non-attendance of any such agent or agents at the time and place appointed for the purpose shall not, if the act or thing is otherwise duly done, invalidate the act or thing done.

14.

Voting.

(1)

If poll has to be taken, the Election Officer shall appoint forthwith one or more polling officers at each polling station and may pay the remuneration as fixed by the Government for their services. The Election Officer shall provide for each Polling Officer such number of clerks as may be necessary and also, if necessary appoint one or more identifying officers to assist the Polling Officer in identifying the electors.

(2)

The Polling Officer shall see that the election is fairly conducted and to that end keep order at the polling station to regulate the number of electors to be admitted at one time, and shall exclude all persons other than :-

(a)

the candidates, and at each booth one polling agent at a time of each candidate appointed in writing by the candidate;

(b)

the police or other public servants on duty;

(c)

his own clerks and such persons as the polling officers may from time to time admit for the purpose of identifying electors;

(d)

persons authorised by the Government;

(e)

a child in arms or accompanying an elector; and

(f)

a person accompanying a blind or infirm elector who cannot move without help.

(3)

Where a woman elector cannot be identified by the identifying officers appointed under sub-rule (1) by reason of her observing purdah, she may be required to be identified by any of her near relatives unless she otherwise satisfied the Polling Officer of her identity.

Explanation. - if any question arises as to whether a person is or is not a near relative within the meaning of this sub-rule it shall be decided by the Polling Officer and his decision shall be final.

15.

Right to vote.

- All electors voting at an election shall do so in person at the polling station provided for them under the rules.

16.

Arrangements of polling station.

(1)

Outside each polling station there shall be displayed prominently;-

(a)

a notice specifying the polling area, the serial number of electors in the relevant Voters List who are entitled to vote at the polling station and when the polling area has more than one polling station, the particulars of the electors so entitled;

(b)

copy of the list of contesting candidates with the serial numbers and the symbols assigned to them; and

(c)

each of the polling station shall contain one or more separate compartments in which electors are to record their votes, screened from observation.

(2)

There will be two ballot boxes kept in the polling booths - One for the Member Managing Committee and the other for President of Water User Association.

(3)

The names of the contesting candidates along with their symbols shall be displayed inside the polling booth above the ballot box to enable the voter to exercise his franchise without difficulty;

(4)

Counting shall be arranged for the Member Managing Committee and President Water Users' Association on the same day in the afternoon following the poll.

(5)

The Election Officer shall provide at each polling station sufficient number Of ballot boxes, together with copies of the electoral roll or such part thereof, may as contain the names of the electors entitled to vote at the station, and such other papers, and articles necessary for electors to mark the ballot papers, stationery and forms as may be necessary.

17.

Preparation of ballot boxes.

(1)

Where a paper seal is used for securing a ballot box, the Polling Officer shall affix his own signature on the paper seal and obtain thereon the signature of such of the candidates or of their election or the polling agents present as are desirous of affixing the same.

(2)

The Polling Officer shall thereafter fix the paper seal so signed in the space meant therefor in the ballot box and shall then secure and seal the box in such manner that the slit for the insertion of ballot paper therein remains open.

(3)

The seals used for securing a ballot box shall be affixed in such manner that after the box has been closed, it is not possible to open it without breaking the seal.

(4)

Where it is not necessary to use paper seals or securing the ballot boxes, the Polling Officer shall secure and seal the ballot box in such manner that the slit for, the insertion of ballot papers remains open and shall allow the polling agents present to affix, if they so desire, their seals.

(5)

Every ballot box used at a polling station shall bear label both inside and outside marked with :-

(a)

the description of the polling station;

(b)

the serial number of the ballot box (to be filled in at the one of the polls on the label outside the ballot box only); and

(c)

the date of poll.

(6)

Immediately before commencement of the poll the Polling Officer shall demonstrate to the polling agents and other

persons present that the ballot box is empty and bears the labels referred to in sub-rule (5).

(7)

The ballot box shall then be closed sealed and secured and placed in full view of the Polling Officer and polling agents.

(8)

Immediately before commencement of the poll, the Polling Officer shall demonstrate to the polling agents and others present the marked copy or, as the case may be, marked copies of the Voters List to be used during the poll.

18.

Form of ballot paper.

(1)

Every ballot paper shall have a counterfoil attached thereto and the said ballot paper and the counterfoil shall be in such form as the Election Authority may, by order, direct.

(2)

Every ballot paper shall, before issue to an elector, be

(a)

Stamped or shall be written on its back such of the details as may be specified by the "Election Authority". Name and number of the polling station Name of the Water Users' Association Name of the Mandal

(b)

signed in full on its back by the Polling Officer.

19.

Issue of ballot papers.

(1)

Immediately before any ballot paper is issued to an elector the Polling Officer shall:-

(a)

call out the number, name and description of the elector as stated in the voter list, and

(b)

record on its counterfoil the Voters List number of the elector as entered in the marked copy of the Voters List and obtain the signature or thumb impression of that elector on the said counterfoil :

Provided that no ballot paper shall be delivered to an elector unless he has put his signature or thumb impression on the counterfoil of that ballot paper.

(2)

The Polling Officer or polling clerk, as the case may be, shall underline the entry relating to the elector in the marked copy of the Voters List with him in every case and where the elector is a female shall put a () mark also on the left hand side of the name of the female elector.

(3)

The Polling Officer or polling clerk, as the case may be, shall apply the indelible ink mark on the ridge between the skin and the root of the nail of left hand forefinger to him.

(4)

No person in the polling station shall note down the serial numbers of the ballot papers issued to any elector.

20.

Maintenance of secrecy of voting by electors and voting procedure.

(1)

Every elector to whom a ballot paper has been issued under Rule 19 or under any other provisions of these rules shall maintain secrecy of voting within the polling station and for that purpose observe the voting procedure hereinafter laid down.

(2)

The elector on receiving the ballot paper or papers as the case may be, shall forthwith:

(a)

proceed to one of the voting compartments;

(b)

make a mark on the ballot paper or papers with the instrument supplied for the purpose on or near the symbol or symbols allotted to the candidate or candidates for whom he intends to vote;

(c)
fold the ballot paper or papers vertically first and thereafter horizontally so as to conceal his vote.

(d)
insert the folded ballot paper into the specified ballot box; and

(e)
leave the polling station by the exit provided.

(3)
Every elector shall vote without undue delay.

(4)
No elector shall be allowed to enter a voting compartment when another elector is inside it.

(5)
If an elector to whom a ballot paper has been issued refuses, after warning given by the Polling Officer to observe the procedure laid down in sub-rule (2) the ballot paper issued to him shall, whether he has recorded his vote thereon or not, be taken back from him by the Polling Officer or a polling clerk under the direction of the Polling Officer.

(6)
After the ballot paper has been taken back, the Polling Officer shall record on its back the word "cancelled: voting procedure violated" and put his signature below these words and all such ballot papers shall be kept in a separate cover which shall bear on its face the words "Ballot Papers - voting procedure violated".

(7)
Without prejudice to any other penalty to which an elector, from whom a ballot paper has been taken back under sub-rule (5), may be liable and the vote, if any recorded on such ballot paper shall not be counted.

21.
Blind and infirm voters.

(1)
If owing to blindness or other physical infirmity an elector is unable to recognise the symbols on the ballot paper or to make mark thereon, the Polling Officer shall record the vote on the ballot paper in accordance with the wishes of the elector, fold it so as to conceal the vote and insert it into the ballot box.

(2)
While acting under this rule, the Polling Officer shall observe secrecy and shall keep a brief record of each such instances but shall not indicate therein the manner in which any vote has been given.

22.
Facilities to women electors.

- Special facilities in accordance with the instructions, if any, issued by Election Authority in that behalf may be accorded to women elector.

23.
Identification of electors.

(1)
When a person presents himself to vote and at any time before a ballot paper is supplied to him, the Polling Officer may of his own accord and shall, if so required by a candidate or his polling agent, put to such person either one or both of the following questions;-

(I)
Are you the person enrolled as follows (reading the whole entry from the roll?;

(II)
Have you already voted at the present election at this polling station or at any other polling station? And the person shall not be supplied with a ballot paper unless he gives an unqualified answer to the question or questions put to him or her in the affirmative to the first and in the negative to the second or such questions. Except as mentioned herein, every person whose name is found on the Voters List shall be entitled to be supplied with a ballot paper.

24.
Tendered votes.

(1)
If a person representing himself to be a particular elector, applies for a ballot paper after another person has already

voted as such elector, he shall, on satisfactorily answering such questions relating to his identity as the Polling Officer may ask, be entitled, subject to the following provision to mark ballot paper (hereinafter in these rules referred to as a "Tendered Ballot Paper") in the same manner as any other elector.

(2)

Every such person, shall, before being supplied with a tendered ballot paper sign his name against entry relating to him in a list in Form 13.

(3)

A tendered ballot paper shall be the same as the ballot paper used at the polling except that it shall be --

(a)

taken serially from the bottom of the bundle of ballot papers issued for use at the polling stations in successive cases; and

(b)

endorsed on the back with the words "Tendered Ballot Paper" by the Polling Officer in his own hand and signed by him.

(4)

The elector, after making a tendered ballot paper in the voting compartment and folding it, shall instead of putting it into the ballot box, give it to the Polling Officer, who shall place it in a cover specifically kept for the purpose.

25.

Challenging of identity.

(1)

Any polling agent may challenge the identity of person claiming to be a particular elector by first depositing a sum of five rupees in cash with the Polling Officer for each such challenge.

(2)

On such a deposit being made, the Polling Officer shall;-

(a)

warn the person challenged of the penalty for impersonation;

(b)

read the relevant entry in the Voters List in full and ask him whether he is the person referred to in the entry;

(c)

enter his name and address in the list of challenged votes in Form 14; and

(d)

require him to affix his signature in the said list.

(3)

The Polling Officer shall thereafter hold a summary inquiry into the challenge and may for that purpose -

(a)

require the challenger to adduce evidence in proof of the challenge and the person challenged to adduce evidence in proof of his identity;

(b)

put the person challenged any question necessary for the purpose of establishing his identity and require him to answer them on oath; and

(c)

administer on oath to the challenger and any other person offering to give evidence.

(4)

If, after the enquiry the Polling Officer considers that the challenge has not been established, he shall allow the person, challenged, to vote; and if he considers that the challenge has been established, he shall debar the person challenged from voting.

(5)

If the Polling Officer is of the opinion that the challenge is frivolous or had not been made in good faith, he shall direct that the deposit made under sub-rule (1) be forfeited to the Government and in any other case; he shall return it to the challenger at the conclusion of the inquiry.

26.

Safeguards against impersonation.

(1)

Every elector about whose identity the Polling Officer or the polling clerk, as the case may be, is satisfied, shall allow his left forefinger to be inspected by the Polling Officer or polling clerk and an indelible ink mark to be put on it.

(2)

Any reference in this rule to the left forefinger of an elector shall in case where the elector has his left forefinger missing, be construed as a reference to any other finger of his left hand and shall, in case where all the fingers of his left hand are missing, be construed as a reference to the forefingers or any other finger of his right hand, and shall in case where all his fingers of both hands are missing, be construed as a reference in such extremity of his left or right arm as he possesses.

(3)

The Polling Officer shall be at liberty to refuse to deliver a ballot paper to any person for voting at the polling station if at the time such person applies for a ballot paper has already an indelible ink mark referred to in sub-rules (1) and (2).

27.

Spoilt and returned ballot papers.

(1)

An elector who has inadvertently dealt with his ballot paper may, by delivering it to the Polling Officer and on satisfying him of the inadvertence, be given another ballot paper and the ballot paper so returned and the counterfoil of such ballot paper shall be marked as "Spoilt Cancelled" by the Polling Officer.

(2)

If an elector after obtaining a ballot paper decides not to use it, he shall return it to the Polling Officer, and the ballot paper so returned and the counterfoil of such ballot paper shall be marked as "Returned Cancelled" by the Polling Officer.

(3)

All ballot papers cancelled under sub-rule (1) and sub-rule (2) shall be kept in a separate packet.

28.

Closing of poll and sealing of ballot boxes and covers after poll.

(1)

The Polling Officer shall close the polling station at the hour appointed for closing under Clause (e) of sub-rule (5) of Rule 2 and shall not thereafter admit any elector into a polling station :

Provided that all electors present at the polling station before it is closed shall be allowed to cast their votes.

(2)

If any question arises whether an elector was present at the polling station before it was closed it shall be decided by the Polling Officer and his decision shall be final.

(3)

The Polling Officer of each polling station as soon as practicable after the close of the poll shall close the slit of the ballot box and where the box does not contain any mechanical device for closing the slit, he shall seal up the slit and also allow any polling agent present to affix his seal. The ballot box shall thereafter be sealed and secured.

(4)

Where it becomes necessary to use a second ballot box by reason of the first ballot box getting full, the first box shall be closed, sealed and secured as provided in sub-rule (3) before another ballot box is put into use,-

(5)

The foregoing provisions of this rule shall not apply to a Polling Officer of a polling station to whom Election Authority has issued a direction asking him to proceed in accordance with sub-rule (6).

(6)

At any such polling station as may be specified under sub-rule (5) as soon as practicable, after the close of poll, the Polling Officer shall-

(a)

transfer all the ballot papers contained in the ballot box or boxes used at that polling station, without examining or counting them and with due regard to the secrecy of the ballot, into a cloth bag or cloth lined cover after demonstrating to the polling agents present that the bag or cover is empty; and

(b)

allow the polling agent present to inspect each ballot box and demonstrate to them that it has been emptied.

(7)

The Polling Officer of each polling station, as soon as practicable after the close of the poll, shall in the presence of any candidate or polling agents who may be present make up the following into separate packets and seal with his own seal and the seals of such candidates or agents as may decide to affix their seals:

(i)

the tendered ballot papers;

(ii)

the unused ballot papers;

(iii)

the spoilt and returned ballot papers;

(iv)

the marked copy of the electoral roll;

(v)

the tendered votes list;

(vi)

the list of challenged votes with the statement or statements mentioned in sub-rule (2) or Rule 25;

(vii)

Counterfoils of used ballot papers; and

(viii)

the ballot papers cancelled for violation of voting procedure under Rule 20.

(8)

Each packet shall be numbered and shall bear a note as to its contents, description of the election and the polling stations. Where no vote has been recorded at any polling station, the Polling Officer shall submit a nil' report together with the statement in Form 15.

29.

Account of ballot Papers.

(1)

The Packets shall be accompanied by a statement in a separate cover in Form 15 made by the Polling Officer showing the number of ballot papers in the ballot boxes and unused, spoilt, returned and tendered ballot papers. The Polling Officer shall then deliver or cause to be delivered to the Election Officer at such place as the Election Officer may direct:

(a)

the ballot boxes or, as the case may be, the bags or covers referred to in Rule 28;

(b)

the ballot paper account or accounts;

(c)

sealed packets or sets of sealed packets referred to in Rule 28; and

(d)

all other papers used at the poll.

(2)

The Election Officer shall make adequate arrangements for the safe transport of all ballot boxes packets and other papers and for their safe custody until commencement of the counting of votes.

30.

Scrutiny of Opening of Ballot Boxes and Counting of Votes.

(1)

(a)

The counting of votes shall commence on the day and at the place and hour appointed in this behalf.

(b)

The Election Officer shall, atleast three days before the date, or the first of the dates, fixed for the poll appoint the place or places where the counting of votes will be done and the date and time at which the counting will commence and shall give notice of the same in writing to each candidate or his election agent:

Provided that if for any reason the Election Officer finds it necessary so to do, he may alter the date, time and place or places so fixed, or any of them, after giving notice of the same in writing to each candidate or his election agent.

(c)

Votes shall be counted by or under the supervision of the Election Officer. The Election Officer shall appoint such number of counting assistants as may be necessary to assist him in counting of votes.

(d)

Each, candidate, election agent of each candidate, and one representative of each candidate authorised in writing by the candidate shall have a right to be present except such person or persons as the Election Officer may appoint to assist him in counting votes. No person shall be appointed to assist in counting the votes who has been employed by or on behalf of any candidate or any person whatsoever connected with the election of the candidate.

(2)

(a)

The Election Officer shall open, or cause to be opened, simultaneously the ballot box or boxes used at more than one polling station and shall have the total number of ballot papers found in such box or boxes counted and recorded in Part II of Ballot Paper Account (Form 15);

(b)

Discrepancy, if any, between the total number of such ballot papers recorded as aforesaid and the total number of ballot papers issued to voters as shown in Item 3 of Part I of the said Form 15 minus the number of ballot papers cancelled as shown in Items 4 thereof and the number of papers as shown in Item 5 thereof, shall also be recorded in Part II of Form 15.

(c)

Before any ballot box is opened for counting of votes the counting agents present thereat shall be allowed to inspect the paper seal or such other seal as might have been affixed thereon and to satisfy themselves that the ballot box is intact.

(d)

The Election Officer shall satisfy himself that none of the ballot boxes has in fact been tampered with in any way.

(e)

If the Election Officer is satisfied that any ballot box has in fact been tampered with, he shall not count the ballot papers contained in that box and shall follow the procedure laid down in Rule 35 in respect of that polling station.

(3)

The Election Officer shall, as far as practicable, proceed continuously with the counting of votes, and shall, during any necessary intervals during which the counting has to be suspended, place ballot papers, packets and other documents relating to the election under his own seal and the seals of such candidates or agents as may desire to affix them and shall cause adequate precautions to be taken for their safe custody.

31.

Admission to the place fixed for counting.

- The Polling Officer shall exclude from the place fixed for counting of votes all persons except-

(a)

such persons to be known as counting supervisors and counting assistants as he may appoint to assist him in the counting;

(b)

persons authorised by the Government;

(c)

public servants on duty in connection with the election, and

(d)

candidates, their election agents and one representative of each candidate appointed in writing by the candidates as counting agents;

32.

Rejection of Ballot Papers.

(1)

Subject to such general or special directions, if any, as may be given by the Election Authority in this behalf, the ballot papers shall be counted polling station-wise.

(2)

The Election Officer shall reject a ballot paper -

(a)

if it bears any mark or writing by which the elector can be identified; or

(b)

if it bears no mark at all to indicate the vote, it bears a mark elsewhere thereon or near the symbol of one of the candidates on the face of the ballot paper or, it bears a mark made otherwise than with the instrument supplied for the purpose; or

(c)

if votes are given on it in favour of more than one candidate; or

(d)

if the mark indicating the vote thereon is placed in such manner as to make it doubtful as to which candidate the vote has been given; or

(e)

if it is a spurious ballot paper; or

(f)

if it is so damaged or mutilated that its identity as a genuine ballot paper cannot be established; or

(g)

if it bears a serial number or is of a design, different from the serial numbers or, as the case may be design, of the ballot papers authorised for used at the particular polling station; or

(h)

if it does not bear both the distinguishing mark and the signature which it should have borne under the provision of sub-rule (2) of Rule 18 :

Provided that where the Election Officer is satisfied that any such defect as is mentioned in Clause (g) or Clause (h) has been caused by any mistake or failure on the part of Polling Officer or polling clerk the ballot paper shall not be rejected merely by the reason of such defect;

Provided further that a ballot paper shall not be rejected merely on the ground that the mark indicating the vote is indistinct or made more than once, if the intention that the vote shall be for a particular candidate clearly appears from the way the paper is marked.

(3)

Before rejecting any ballot paper under sub-rule (1) the Election Officer shall allow each counting agent present a reasonable opportunity to inspect the ballot paper but shall not allow him to handle it or any other ballot paper.

(4)

The Election Officer shall endorse on every ballot paper which he rejects the word "Rejected" and the grounds of rejection in abbreviated form either in his own hand or by means of a rubber stamp and shall initial such endorsement.

(5)

All ballot papers rejected under this Rule shall be bundled together.

(6)

Every ballot paper which is not rejected under this Rule shall be counted as one valid vote :

Provided that no cover containing tendered ballot papers shall be opened and no such paper shall be counted.

(7)

After counting of all ballot papers contained in all the ballot boxes used in a Water Users' Association have been completed, the Election Officer shall make the entries in a result sheet in Form 16 and announce the particulars.

(8)

The decision of the Election Officer as to the validity of a ballot paper shall be final subject to scrutiny only and if necessary on reversal of an election petition.

33.

Recount of Votes.

(1)

After such announcement has been made under sub-rule (7) of Rule 32, a candidate or, in his absence, his election agent or any of his counting agents may apply in writing to the Election Officer for recounting of the votes either wholly

or in part stating the grounds on which he demands such recount.

(2)

On such an application being made the Election Officer shall decide the matter and may allow the application in whole or in part or may reject it wholly if it appears to him to be frivolous or unreasonable.

(3)

Every decision of the Election Officer under sub-rule (2) shall be in writing and contain the reason therefor;

(4)

If the Election Officer decide under sub-rule (2) to allow a recount of the votes either wholly or in part he shall-

(a)

arrange for the recounting in accordance with Rules 31 and 32;

(b)

amend the result sheet in Form 16 to the extent necessary after such recount;

(c)

announce the amendments so made by him;

(5)

After the total number of votes polled by each candidate has been announced under sub-rule (4) the Election Officer shall complete and sign the result Sheet in Form 16 and no application for a further or second recount shall be entertained thereafter.

34.

Equality of Votes.

- If, after the counting of the votes is completed an equality of votes is found to exist between any candidates and the addition of one vote will lead to any of those candidates being declared elected, the Election Officer shall forthwith decide between those candidates by lot, and proceed as if the candidate on whom the lot falls had received the additional vote.

35.

Disturbances at the time of Counting of Votes.

(1)

If at any time before the counting of votes is completed and ballot papers used at a polling station or at a place fixed for the poll are unlawfully taken out of the custody of the Election Officer or are accidentally or intentionally destroyed or lost or are damaged or tampered with, to such an extent that the result of the poll at that polling station or place can not be ascertained, the Election Officer forthwith report the matter of the Election Authority.

(2)

Thereupon, the Election Authority after taking all material, circumstances into account, either -

(a)

direct that the counting of votes shall be stopped, declare the poll at that polling station or place to be void, appoint a day, and fix hours for taking a fresh poll at that polling station or place and notify the date so appointed and hours so fixed in such manner as he may deem fit, or

(b)

if satisfied that the result of a fresh poll at that polling station or place will not, in any way, affect the result of the Election, issue such directions to the Election Officer as may deem proper for the resumption and completion of the election and for further conduct and completion of the election in relation to which the votes have been counted.

(3)

The provisions of these Rules and any rules or orders made there under shall apply to any and every such fresh poll as they apply to the original poll.

36.

Sealing of used Ballot Papers.

- The valid ballot papers of each candidate and the rejected Ballot Papers shall thereafter be bundled separately and the several bundles made up into a separate packet which, shall be sealed with the seals of the Election Officer and of such of the candidates, their election agents or counting agents as may desire to affix their seals thereon, and on the packets sealed shall be recorded the following particulars namely -

(a)

the number of the polling station number of ward/name of Water User Association/Mandal Parishad, and

(b)

the date of counting.

37.

Transfer of Ballot Papers to Cloth Bags.

- The provisions of Rules 31, 32 and 36 shall apply so far as may be in relation to counting of ballot papers and votes, which have been transferred from ballot boxes to cloth bags or cloth lined covers under sub-rule (6) of Rule 28: Provided that every reference in the said Rules to a ballot box, shall be construed as a reference to a bag or cover to which the contents of a ballot box have been transferred.

38.

Counting of Votes in case of Fresh Poll.

(1)

If a fresh poll is held under sub-rule (7) of Rule 43, the Election Officer shall after completion of that poll recommence the counting of votes on the date and at the time and place which have been fixed by him in that behalf and for which notice has been previously given to the candidates or their election agents.

(2)

The Provisions of Rules 29 and 36, shall apply so far as may be to such, further counting.

39.

Declaration of Result.

(1)

The Election Officer shall, subject to the provisions of Rule 34, in so far as they apply to any particular case :

(a)

declare in Form 17 the candidate to whom the largest number of valid votes have been given, (to be elected under Rule 41) and send signed copies thereof to the Election Authority and the District Election Authority; and

(b)

complete the entries of the result of election of Form 16 and send signed copies thereof to the Election Authority and the District Election Authority.

(2)

Copies of result sheet in Form 16 shall be supplied to the contesting candidates on payment of fee as charged for supply of certified copies of other Government records. Copies of Form 17 shall also be supplied to the contesting candidate on payment of rupees two for each copy. The District Election Authority, or Election Officer on receipt of an application shall issue the certified copies referred to above.

40.

Grant of Election Certificate.

- As soon as may be, after a candidate has been declared by the Election Officer under Rule 11 or as the case may be under Rule 41, to be elected, the Election Officer shall grant such candidate a certificate of election in Form 18, and obtain from the candidate an acknowledgment of its receipt duly signed by him and immediately send the acknowledgment by a registered post to the District Election Authority under intimation to the Election Authority.

41.

Publication of Results.

- The Election Officer shall publish on the notice Board in the office of the Water Users' Association concerned a notification signed by him, stating the name of the candidate duly elected.

42.

Disposal of Ballot Papers.

(1)

The Election Officer shall, after declaring the result forward a copy of the return to the Competent Authority concerned and shall hand over to the Officer authorised by the Election Authority the packets of ballot papers, whether counted, rejected or tendered. These packets shall not be opened and their contents, shall not be inspected or produced except under the orders of an authority competent to decide election disputes.

(2)

The Officer so authorised shall return packets and the marked copies of the Voters List for a year and shall then, unless

otherwise directed by the order of an authority competent to decide election disputes, cause them to be destroyed.

43.

Adjournment of poll in emergencies.

(1)

Where the proceedings at any polling station are seriously interrupted or obstructed by any riot or open violence or otherwise or where a large number of electors are unable to attend the poll at a polling station by reason of an act of God, such as flood or fire, the Polling Officer shall stop the poll, pending receipt of the orders of the District Election Authority. The fact that the poll has been so stopped shall be immediately announced by the polling officer to the persons present at the polling stations.

(2)

Where a Polling Officer stops a poll under sub-rule (1) he shall observe the procedure laid down in Rules 28 and 29 and forthwith make a full report of the circumstances to the Election Officer, who shall forward the same expeditiously with his remarks thereon, if any, to the Election Authority.

(3)

The Election Authority shall thereupon order-

(a)

that the poll be continued at the polling station for the number of hours for which it was not held on the previous occasion provided that not less than 50% of the voters have cast their votes; or

(b)

that the proceedings at the poll held at the polling station on the previous occasion be ignored and that a fresh poll be held at such polling station for the full number of hours for which it should have been held on the previous occasion; and

(c)

Any order passed by the Election Authority under this sub-rule shall be final.

(4)

Any order passed under sub-rule (3) shall-

(a)

State-

(i)

the date on which, and the hours between which the continuation poll or the fresh poll, as the case may be shall be held; and

(ii)

the date on which and the place and hour at which, the Election Officer, will commence the counting of the votes under Rule 38; and

(b)

be given wide publicity in the polling area concerned by the Election Officer, in such manner as the District Election Authority may direct, announcing the date, place and hour of polling fixed under Clause (a).

(5)

(a)

where an order is passed under Clause (a) of sub-rule (3) of the continuation of the poll, the Election Officer shall proceed afresh under sub-rule (1) of Rule 14 and return to the Polling Officer appointed under that sub-rule all the packets received by him under sub-rule (2) of this rule.

(b)

the Polling Officer shall open the packets just before commencement of the continuation poll in the presence of such persons as may be present at the polling station, and commence such poll precisely at the hour fixed therefor in the order passed by, the Election Authority under Clause (a) of sub-rule (3).

(c)

at the continuation poll, the Polling Officer shall allow only such electors to vote as did not vote in the previous occasion.

(d)

the Election Officer shall not count votes cast at such election until such continuation poll or fresh poll has been completed.

(e)

the Election Officer shall provide the Polling Officer of the polling station, at which such continuation poll is held with the sealed packet containing the marked copy of the electoral roll, ballot boxes and such other material required for the poll.

(6)

Where an order is passed under Clause (b) of sub-rule (3) for holding a fresh poll the Election Officer shall proceed afresh under sub-rule (1) of Rule 14 and a fresh poll shall be held at the polling station concerned in accordance with the provisions of these rules in all respects as if, it is being held at such polling station for the first time.

Explanation. - There shall be no fresh nominations in cases falling under this sub-rule.

(7)

Notwithstanding anything contained in this rule, if a candidate dies at any time before orders are passed by the Election Authority under sub-rule (3) or at any time after the passing of such orders but before commencement of the continuation poll, or of the fresh poll, as the case may be, the Election Officer shall upon being satisfied of the fact of the death of the candidate intimate such fact to the Election Authority, stop all further proceedings in connection with the election and start election proceedings afresh in all respects as if for a new election :

Provided that no fresh nomination shall be necessary in the case of the remaining candidates who stood nominated at the time when the poll was stopped.

44.

Filling up of Casual Vacancies.

- Any casual vacancy of Member or a President of a Water Users' Association shall be filled up within a period of thirty days from the date of occurrence of such vacancy on issue of a notification by the Election Authority following the provisions of these rules and orders made thereunder.

45.

Power of Government in certain cases.

(1)

If any question arises to the interpretation of these Rules otherwise than in connection with an enquiry held under the Rules, for the decision of disputes as to the validity of an election or in removing any difficulty in giving effect to the provisions of the Act, the question shall be referred to the Government whose decision thereon shall be final.

46.

Power of Election Officer to fix dates etc., certain cases.

- Notwithstanding anything in the foregoing Rules, the Government or the Election Authority may, before the filing of nominations in the case of any Water Users' Association, in particular empower the Election Officer to fix dates and period other than those specified or fixed by or under these Rules for all or any of the stages of the election proceedings connected therewith.

Part 2

Election of member Managing Committee and President of the Distributory Committee

47.

Notwithstanding anything contained in these rules, the election of the members specified in sub-section (2) of Section 8 of the Act, shall be held in the office of the notified Mandal Parishad at a special meeting of the members of the Distributory Committee specified in sub-section (3) of Section 5 thereof. The Election Officer shall be the Collector or any Gazetted Officer of the Government authorised by the District Election Authority.

48.

The Election Officer shall display the voters list for the purpose of the election and exhibit it on the notice board of the Mandal Parishad along with the notice for election.

49.

The notice of election giving the date, place and time of the election shall be displayed in Telugu Language and sent to the members of the Distributory Committee specified in sub-section (3) of Section 5 of the Act, atleast two clear days in advance of the date of election of the members under sub-section (2) of Section 8 of the Act, by the Election Officer.

50.

The election shall be by secret ballot and shall conclude on a single day. The programme shall be as follows:

Provided that the procedure for filing of nominations shall be according to Rules 4 to 10 in Part I of the Election Manual.

51.

If the number of contesting candidates is more than one, poll shall be conducted. If there is only one validly nominated

candidate, the Election Officer shall forthwith declare such candidate as duly elected (in Form 9) and send the same to the Election Authority and the District Election Authority.

52.

In the event of contest, ballot papers shall be prepared containing names of the contesting candidates in Telugu Language in alphabetical order, for the post of President and Members, Managing Committee, separately and the election shall be conducted as specified by the Election Authority.

53.

At the end of the poll, the Election Officer shall arrange forthwith, the counting of votes polled for the contesting candidates for President and Members Managing Committee separately and declare the candidates as elected, as follows :

(i)

the candidate who secured the highest number of votes polled, for the post of President, as elected to the post of President of that Distributory Committee; and

(ii)

the candidates who secured the highest number of votes polled in the descending order as elected to the posts of Member Managing Committee to the extent of the strength of the Managing Committee in that Distributory Committee.

54.

In the event of there being an equality of votes between the two candidates, the Election Officer shall draw lots in the presence of the members and the candidate whose name is first drawn shall be declared to have been duly elected.

55.

Immediately after the declaration of the result of the election, the Election Officer shall prepare a record of the proceedings of the meeting and sign it attesting with his initials every correction made therein and shall also have the said record of proceedings attested by a majority of the number of members who participated in the meeting. He shall also publish on the notice board of the Mandal Parishad, a notice signed by him stating the name of the person elected as a Member, Managing Committee and President of the Distributory Committee as specified under sub-section (2) of Section 6 of the Act and send a copy of such notice to the District Election Authority concerned and the Election Authority. A copy of this notice shall also be given to the candidate, who is declared elected as member of the Distributory Committee.

56.

Notwithstanding anything contained in these rules, the Election Officer may, for sufficient reasons to be recorded in writing, direct from time to time, the alteration of the date of the special meeting convened under Rule 47 and inform the District Election Authority and Election Authority.

57.

No meeting for the conduct of election of member specified in sub-section (2) of Section 6 of the Act, shall be held unless there be present at the meeting atleast one-half of the number of members of the Distributory Committee who are entitled to vote at the election.

58.

The Government or the Election Authority, as the case may be by order prescribe the code of conduct for candidates, voters and all persons connected with the conduct of elections.

Appendix 1

Form - 1

[see Rule 2(2)]

Notice for the Election of Member of Managing Committee/President of Water Users' Association(s) in.....District.

It is hereby notified that elections to members, Managing Committee/President of the Water Users' Association in District shall be conducted as per the following :

(i)

Nominations papers shall be presented:

(a)

On (date)

(b)

Time..... between to.....hours

(ii)

Date of scrutiny of nominations papers

(iii)

Date of withdrawal of candidature

(iv)

Date of Polling:

(v)

Date of Counting of votes by the Election Officer:

(vi)

Declaration of publication of results:

Election Authority/District

Election Authority.

Appendix 2

Form - 2

[see Rule 2(4)]

Notice of Election for the Office of Member Managing Committee, President Water Users' Association

Notice is hereby given that-

(1)

An election to be held for election of the Member, Managing Committee and PresidentWater Users' Association.

(2)

Nomination Papers may be delivered by a candidate or his proposer to the undersigned between 10.30 a.m. and 5.00 p.m, from to (date).

(3)

Forms of nomination papers may be obtained at the place and time aforesaid.

(4)

The nomination papers will be taken up for scrutiny at(place) on Date at (hrs).

(5)

Notice of withdrawal of candidate may be delivered by a candidate or his proposer or his election agent to the undersigned atoffice before 3.00 p.m. on the

(6)

In the event of election being contested the poll will be taken on between the 7.00 hrs. and 13.00 hrs.

(7)

Counting will commence after the Poll is over and results declared immediately thereafter.

Election Officer.

Place :

Date :

Appendix 3

Form - 3

[see Rules 4(1) and 5]

Water Users' Association

Nomination Paper

Name of the Office Member, Managing Committee/President of WUA

Name or number of the territorial constituency

Full name of the candidate

Father's or husband's name

Serial number of candidate in the Electoral Roll

Age

Sex

Occupation and Address

Full name of the proposer

Serial number of the proposer in the electoral roll

Signature of the proposer.

Candidates' Declaration

I declare that I am eligible and willing to stand for election and my age as shown above is correct.

Signature of Candidate

The above declaration is solemnly affirmed before me (name of the officer in block letters) by.....who is personally known to me (who has been identified to my satisfaction by of

Signature of Village

Administrative Officer

or any other officer not

below the rank of a

Mandal Revenue Officer

(Endorsement by the Election Officer or other authorised person serial number).

This nomination paper was presented to me (person) at (date and hour)

Signature of the Election Officer

or other Authorised Person

Decision of Election Officer accepting or rejecting the nomination paper.

I have examined the nomination paper in accordance with Rule 8 and decide as follows :

Election Officer

Date :

Receipt for Nomination paper and notice for scrutiny

(to be handed over to the person presenting the nomination paper)

Serial No. of Nomination Paper The Nomination Paper of a candidate for election of Member, Managing Committee of the Water User's Association...../territorial constituency No.....was delivered to me at(hour) on(date) by the Candidate/Proper.

All nomination papers will be taken up for scrutiny at(hour).....on ,.....(date) at.....(Place).

Date :

Election Officer

Appendix 4

Form - 4

[see Rules 4(1) and 5]

Nomination Paper

Election to the office of the Member, Managing Committee/President of the WUA.....

I nominate as a candidate for election to the office of member, managing committee/President WUA.

Candidates Name:

Name of the Candidates father/Husband.

his/her postal address.

His/her name is entered at serial number in Section No of the Voters List for.....WUA.

My name is And it is entered at serial No.....in section no.....of the Voters List for theWUA.

Date :

Signature of the Proposer.

I, the above mentioned candidate assent to this nomination and hereby declare -

(a)

that I have completed years of age. (to be filled by the election officer) Serial Number of Nomination Paper

This nomination was delivered to me at my office at..... (hour) on (date) by the candidate/Proposer.

Date :

Election Officer.

Decision of the Election Officer accepting or rejecting the Nomination paper

I have examined this nomination paper in accordance with Rule 9 and decide as follows:

Date :

Election Officer.

Receipt for Nomination paper and notice for scrutiny (to be handed over to the person presenting the nomination paper)

Serial Number of Nomination Paper.....

The Nomination paper of a candidate for election to the office of Member, Managing Committee/President of WUA was delivered to me..... (hour) on (date) by the candidate/proposer.

All nomination papers will be taken up for scrutiny at (hour) on (date) at (place).

Date:

Election Officer.

APPENDIX 5(1)

Form - 5(1)

[see Rule 7]

List of nominations received on (date) for the Office of Member, Managing Committee/President of

Water User Association

Sl.No. of Nomination Paper

Name of the Candidate

Father's Name

Age

Occupation & Address

Voters List No. of Candidate

Name of the Proposer

Voters List No. of Proposer

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

The nomination papers will be taken up for scrutiny ata.m./p.m. on the date at (Place).

Signature of the Election Officer

or other Authorised Person

Place :Date :

Appendix 5(2)

Form - 5(2)

[see Rule 8(5)]

List of validly nominated candidates

Name of District

Name of territorial constituency/WUA....

Election to member, Managing Committee/president ofWater User's Association.

Sl.No.

Allotted Name of the Candidate

Address of the Candidate

(1)

(2)

(3)

1.

2.

3. Etc.

Election Officer

Place :Date :

Appendix 6

Form - 6

[see Rule 9(1)]

Notice of withdrawal

Election to the Office of the Member, Managing Committee/President of Water User's Association.

To

The Election Officer,

I,.....a candidate validly nominated at the above election do hereby give notice that I withdraw my candidature.

Signature of Candidate

Place :Date :

This notice was delivered to me at my office at(hours) on (date) by (name).

Date :

Election Officer Receipt for notice of withdrawal(To be handed over to the person delivering the notice)

This notice of withdrawal of candidature by..... a Candidate at the election to the office of the Member, Managing Committee/President of WUA as delivered to me by theat my office at (hour) on (date).

Election Officer

Appendix 7

Form - 7

[see Rule 9(2)]

Notice of withdrawal of candidature

Election to the office of Member, Managing Committee/President of WUA.

Notice is hereby given that the following validly nominated candidate/candidates at the above election withdraws/withdraw his candidature/their candidature today.

Sl.No.

Name of the Candidate

Symbol Allotted

(1)

(2)

(3)

1.

2.

3.

4. etc.

Date :

Election Officer

Appendix 8

List of contesting candidates

Form - 8

[see Rule 10(1)]

List of contesting candidates

Election to the Office of Member, Managing, Committee/President of WUA.....

Sl.No.

Name of the Candidate

Symbol Allotted/Assigned

(1)

(2)

(3)

1.

2.

3.

4. etc.

Election Officer

Place :Date :

Appendix 9

Form - 9

[see Rule 11(2)]

Declaration of the result of election under Rule 11(2) of the Election Manual.

In accordance with Rule 11(2) of the Election Manual. I declare that the following candidate has been duly elected for the office of Member Managing Committee/President Water Users' Association.....

Name:Address:

Place :Date :

Signature of Election Officer

Appendix 10

Appointment of Election Agent

Form - 10

[see Rule 13(1)(a)]

Appointment of Election Agent

Election to the Office of President of WUA

To

The Election Officer,

I,a candidate at the above election for the post of the president Water User's Association do hereby appoint of as my election agent from this day at the above election.

Signature of Candidate

Date :Place :

I accept the above appointment.

Signature of Election AgentSignature of Election Officer

I hereby, accept and approve the above appointment.

Place :Date :

Appendix 11

Appointment of Polling Agent

Form - 11

[see Rule 13(2)(b)]

Appointment of Polling Agent

Election to the Office of Member, Managing Committee/President of WUA

I,..... a candidate/the election agent of who is a candidate at the above election do hereby appoint as a polling agent to attend polling station No fixed for the poll at

Signature of Candidate

Election Agent

I hereby, accept and approve the above appointment.

Signature of Election Officer

Place :Date :

Appendix 12

Appointment of Counting Agent

Form - 12

[see Rule 13(3)(b)]

Appointment of Counting Agent

Election to the Office of Member, Managing Committee/President of WUA.

To

The Election Officer,

I,..... a candidate/the election agent of who is a candidate at the above election do hereby appoint the following persons as my counting agents to attend the counting of votes at

Name of the Counting Agent

Address of the Counting Agent

1.

2.

3.

Signature of Candidate

Election Agent

I/We agree to act as such counting agents.

Signature of the Agent I hereby, accept and approve the above appointment.

Signature of Election Officer

Place :Date :

Appendix 13

List of Tendered Ballot Papers

Form - 13

[see Rule 24(2)]

List of Tendered Ballot Papers

Polling Station No Territorial Constituency No WUA Election to the office of the Member, Managing Committee and President of the WUA.

Sl. No.

Name of the Elector No. in the Voters

List/Section No.

Name of WUA

Serial No. of Tendered Ballot paper

Signature of Elector or thumb impression of person tendering vote

Serial No. of Ballot paper issued to the person who has already voted

(1)

(2)

(3)

(4)

(5)

(6)

Date : Station :

Signature of Polling Officer.

Appendix 14

List of Challenge Votes

Form - 14

[see Rule 25(2)(c)]

List of Challenge Votes

Polling Station No Territorial constituency No WUA Election to the Office of Member, Managing Committee/President Water User Association.

Sl. No.

No. of Electorson

Voters List/Station No. of WUA

Name of Elector

Signature or thumb impression of the person
challenged and his address

Name of Challenger

Signature and thumb impression of identifier
if any Order of Polling Officer

Signature of challenger on receiving refund of
deposit

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

Signature of Polling Officer.

Date : Station :

Appendix 15

Form - 15

[see Rule 29(1)]

Part I

Ballot Paper Account

Election to the Office of Member, Managing Committee/President of WUA

Territ. Const. No.....

WUA.....

No. and Name of Sl. Nos. Total No. the Polling Station From To.....

1. Ballot papers received

2. Ballot papers unused

(i.e. not issued to voters)

(a)

with the signature of Polling Officer

(b)

without the signature of Polling Officer Total* (A+B)

3. *Ballot papers used at the Polling Stations (1-2=3)

4. Ballot Papers used at the Polling Stations but not inserted into the Ballot Box.

(a)

Ballot Papers cancelled for violation of voting procedure under Rule 20;

(b)

Ballot Papers cancelled for other reasons;

(c)

Ballot Papers used as tendered ballot papers

*Total (A+B+C)

5. *Ballot Papers to be found in the ballot box (3-4=5)

Serial Numbers need not be given.

Signature of Polling Officer

Part II

Result of Counting

Sl.No.

Name of the Candidate

Names of Valid Votes Cast

(1)

(2)

(3)

1.

2.

3.

4. etc.

II. Rejected Ballot Papers

III. Total

Whether the total number of ballot papers shown against item No.III above tallies with the total shown against item No.5 of Part I or any discrepancy noticed between these two totals

Signature of the Counting Supervisor

Place :Date :

Signature of the Election Officer

Place:Date:

Score of the words which are not applicable.

Appendix 16

Final Result Sheet

Form - 16

[see Rule 32(7)]

Final Result Sheet

(To be used for recording the result of voting at Polling Station)

Election to the Office of Member, Managing Committee/President of WUA

Sl.No.

Polling Station No.

Name of Valid votes cast in favour of Total

No. of valid votes

Total No. of rejected votes Total No. of

Tendered votes

A

B

C

D

Total No. of votes recorded at Polling Stations :

Number of votes recorded on Postal Ballot Papers :

Election Officer

Place :Date :

Appendix 17

Form - 17

[see Rule 39(1)(a)]

(For use in election when the seat is contested)

Declaration of result of election under Rule 41 of the Rules

In accordance with Rule 41 of the Andhra Pradesh Farmers' Management of Irrigation Systems and conduct of election of Member, Managing Committees/President of WUA, I declare that the following candidate has been duly elected to the office of the Member, Managing Committee/President of WUA.

Member, Managing Committee/President WUA

NameAddress :

Signature of Election Officer.

Strike of the words which are not applicable.

Appendix 18

Certificate of Election

Form - 18

[see Rule 40]

Certificate of Election

I..... Election Officer for the Water User's Association hereby certify that I have been on the (day) of 19 declared Sri to have duly elected to the office of the member, Managing Committee/President of WUA and that in token thereof I, have granted to him this certificate of election.

Election Officer.Seal

Appendix 19

Form - 19

Notice of Election for the Office of Member Managing Committee President of

Distributory Committee of Irrigation System Notice is hereby given that -

(1)

An election will be held for electing the Members Managing Committee and President of Distributory Committee Irrigation System On (Date),

(2)

Nomination papers may be delivered or filed by a candidate or his proposer to the, or filed before the undersigned between 11.00 A.M. and 12.00 Noon on (Date) at (Place).

(3)

Forms of nomination papers may be obtained from the undersigned one hour before the time specified for filing as aforesaid.

(4)

The nomination papers will be taken up for scrutiny at (Place) on (Date) between 12.30 P.M. to 1.00 P.M.

(5)

Notice of withdrawal of candidature may be delivered by a candidate or his proposer to the undersigned between 1.00 P.M. to 1.30 P.M. on the at

(6)

In the event of election being held, the poll will be taken on (Date) between the 15.00 Hrs and 17.00 Hrs.

(7)

Counting will commence after the poll is over; and the results declared immediately thereafter.

Place:Date :

Election Officer

Appendix 20

Form - 20

Distributory Committee_

Nomination Paper

1. Name of the Office:

(a)

Member, Managing Committee,

(b)

President Distributory Committee.

2. Name of the Water Users Association for which he is elected as President:

3. Full name including Surname of the candidate:

4. Father's or Husband's Name:

5. Age :

6. Sex :

(a)

Occupation :

(b)

Address Permanent :

Address Temporary:

8. Full name of the proposer :

9. Water Users Associations for which he is declared as President:

10. Signature of the Proposer :

(Name in Capital Letters)

Date

Candidates Declaration

I declare that I am eligible and willing to stand for Election.

Signature of the Candidate(Name in Capital Letters).

This nomination paper was presented to me by (Person) at
..... Date and Hour

Signature of the

Election Officer or

Other Authorised Person.

Decision of election officer accepting or rejecting the nomination paper.

I have examined this nomination paper and decide as follows:

Date :

Election Officer:

Receipt for Nomination Paper and Notice for Scrutiny

(to be handed over to the person presenting the nomination paper)

Serial No. of Nomination Paper The Nomination Paper of a
candidate for election of President/Member, Managing Committee of the Distributory Committee was delivered to me at
.....(hours) on (Date) by the
..... Candidate/Proposer.

All nomination papers will be taken up for scrutiny at (hour) on
..... (date) at (Place).

Date:

Election Officer:

Appendix 21

Form -21

List of Nominations Received on (Date) for the Office of Member, Managing Committee/President of
..... Distributory Committee.

Sl. No.

Nomination Name of the Candidate.

Father's Name

Name of W.U.A.

Occupation and Address

Sl.No. Voters List

Name of the Proposer

Name of WUA of the Proposer.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

The nomination papers will be taken up for scrutiny between 12.30 P.M. to 1.00 P.M. on
..... the date at

..... (Place).

Place:

Date:

Signature of the Election Officer or
other Authorised Person

Appendix 22

Form - 22

Name of Distributory Committee:

Election to Member, Managing Committee/President of Distributory Committee.

Sl.No. Allotted.

Name of the candidate

Name of the Water Users Associations he
represents.

(1)

(2)

(3)

1.

2.

3.

4. Etc.

Place:

Date:

Election Officer

Appendix 23

Notice of Withdrawal given by the Candidate

Form - 23

Notice of Withdrawal given by the Candidate

Election to the Office of Member, Managing Committee/President of Distributory Committee

I, being a candidate validly nominated at the above election do hereby give notice that I
withdraw my candidature.

Place :

Date :

Signature of the Candidate.

This notice was delivered to me at my office at (hours) on (date) by
..... (name).

Date :

Election Officer:

Appendix 24

Notice Intimating the Withdrawal made by the Candidate

Form - 24

Notice Intimating the Withdrawal made by the Candidate

Election to the Office of Member, Managing Committee/President of Distributory Committee.

Notice is hereby given that the following validly nominated candidate/candidates for the above election withdraw his
candidature/ their candidature today.

Sl.No.

Name of the candidate

Date of which withdrawal notice delivered

(1)

(2)

(3)

1.

2.

3.

4. Etc.

Date:

Election Officer

Appendix 25

List of Contesting Candidates

Form - 25

List of Contesting Candidates

Election to the Office of Member, Managing Committee/President of Distributory Committee

.....

Sl.No.

Name of the candidate

(1)

(2)

1.

2.

3.

4. Etc.

Place :

Date:

Election Officer

Appendix 26

Form - 26

Ballot Paper

..... Distributory Committee

Ballot Paper

For President

S.No. of the Voter Signature

R.No. Thumb Impression

..... Distributory Committee

Ballot Paper

For President

R.No.

.....Name of the

Candidate in Telugu in Alphabetical order

R.No.

.....Put () mark

against name only in the box space provided.

1.

NAME

2.

NAME

3.

NAME

4.

NAME

5.

NAME

6.

NAME

1. Name of Distributory Committee
2. Date of Poll
3. Place of Poll

Signature of the Election Officer

Appendix 27

Form - 27

..... Distributory Committee

Member/Managing Committee

Sl.No. of the Voter

R.No.

.....Name of the

Candidate in Telugu in Alphabetical order

R.No.

.....Put () mark

against as many candidates as the number of posts in Managing Committee in the box space provided.

1.

NAME

2.

NAME

3.

NAME

4.

NAME

5.

NAME

6.

NAME

1. Name of Distributory Committee

2. Date of Poll

3. Place of Poll

Signature of the Election Officer

Appendix 28

FORM - 28

Declaration of the result of election under rule 11(2) of the Election Manual.

In accordance with Rule 11(2) of the Election Manual, I declare that the following candidate (s) has/have been duly elected for the Office of Member, Managing Committee/President Distributory Committee.

Name :

Address :

Place :

Date :

Signature of Election Officer

Related AI tags, queries and research notes

Translation